

Different States, Different Fates: Examining the Role of State Politics in Juvenile Jurisprudence

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POL 342: Law and Judicial Policy

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Introduction

In its original conception, the State's role in Juvenile Court was *parens patrie*, that is, the legal protector of a child in contact with the justice system, since they aren't old enough or mature enough to be considered not criminally culpable. This made all juvenile cases "civil" and not criminal proceedings. However, this also meant that the rights available in criminal cases (e.g. right to a speedy trial, to a jury or to post bail) were not guaranteed, and the juvenile could only claim the fundamental rights to due process and fair treatment.¹

That was until 1967. In the landmark case *In re Gault*¹, the U.S. Supreme Court ruled that juveniles accused of crimes are entitled to the same due process rights as adults. This included the right to notice of the charges, the right to legal counsel, the right to confront witnesses, and the fifth amendment right against self-incrimination. In doing so, it expanded the scope of due process for juvenile justice.

This issue was also addressed by the court just a year prior in *Kent v. United States* (1966) where the U.S. Supreme Court had ruled that before a 'critically important' action such as transferring a juvenile to adult status², the juvenile was entitled to a hearing. However, this case was first heard within federal jurisdiction and each state's differing interpretations of the Juvenile Delinquency Act referenced *In re Gault* and *Kent v. U.S.* makes for vastly different juvenile justice systems in each state.

Youth transfer policies allow authorities to process minors in the adult criminal justice system instead of the juvenile system. These transfers can occur through different mechanisms: a juvenile court judge's discretion (judicial transfer/waiver), a prosecutor's decision (prosecutorial transfer/waiver), automatic transfer based on specific offenses or age (statutory transfer), or blended sentencing, which combines a juvenile adjudication with a suspended adult sentence. In *Kent v. U.S.* the power of judicial waiver was used by the lower court judge, but the SC ruled that a waiver transferring the case to adult status required a statement of reasons for the Juvenile Court's decision in waiving the case to adult status.

Question

Under what conditions do States transfer juveniles to adult status?

Model

This paper will compare three states with differing political values, namely, California (a politically "liberal" state), Virginia (a "swing" state – serving as the control group), and Florida

¹ "I join your magnificent opinion in the above case. It will be known as the Magna Carta for juveniles." Letter from Chief Justice Earl Warren to Justice Abe Fortas (Mar. 17, 1967) regarding *In re Gault*. Note that it was Fortas that represented Clarence Gideon in *Gideon v. Wainwright* (1963) and had successfully litigated the proposition that access to representation was a necessary aspect of an adversarial courtroom, making the decision in *Gault* almost inevitable (Nevada Law Journal; David S. Tanenhaus, Eric C. Nystrom; 2017)

² In this case, the decision to transfer or not meant the difference between five years confinement if adjudicated as a juvenile, versus a death sentence if found guilty as an adult.

(a politically “conservative” state)^{3,4}, to examine whether the rate of juvenile transfer to adult status in U.S. states is a function of their political values, operationalized as political liberalism modernly conceptualized as the combination of civil liberty and social justice⁵.

The juvenile justice system in each of these states has been divided into legal rules (e.g., minimum age for criminal responsibility and automatic transfer, codified statutory mechanisms that reflect the extent to which a state criminalizes juvenile behavior); legal policies (referring to procedural norms in each district that can indicate ideological tendencies, like prosecutorial or pre-judicial discretion) and legal resources (e.g., defender quality, number of juvenile facilities, factors that show the rehabilitative vs. punitive priorities of states). The presence/absence or quantity of each of the subfactors within these categories is used to score political liberalism⁶.

Hypothesis 1: Higher political liberalism, as evidenced by higher presence/quantity of legal rules, policies and resources will be negatively correlated with higher number of juvenile arrests and transfers to adult status.

Hypothesis 2:

The rate of juvenile transfer will be greater in the State of Florida, moderate in the State of Virginia, lower in the State of California, as functions of their conservative, liberal and moderate political rules and policies respectively.

Evidence (Variables)⁷

Legal Rules

1. Age of Criminal Responsibility

Since children are not considered criminally responsible, and even if a court finds that a violation was committed, they are usually adjudicated “delinquent” and placed on probation, rather than be considered “guilty” and punished. This is not the case in Florida, where children between ages 16-18 are considered criminally responsible, and can be adjudicated guilty.

California: 18 years (*categorized as high/liberal, score = 1*)

Virginia: 18 years (*high/liberal, score = 1*)

Florida: 16 years (*moderate, score = 0.5*)⁸

³ The original research proposal considered Wyoming, as a historically conservative state, and being one of three states electing to not participate in the Office of Juvenile Justice and Delinquency Prevention Program. However, lack of participation in this data-based program meant that there was no public record of the arrests, intakes, trials or outcomes for any children arrested in Wyoming, ever, making it unsuitable for analysis.

⁴ California and Florida were picked as comparison groups because they are politically “extreme” according to the World Population Review, with a majority of each state consistently voting Democrat and Republican respectfully. Both states also had a comparable population size according to the 2020 U.S. census. Virginia was chosen as the control/swing state partly because it has had consistently narrow margins in the elections, likely because most of its rural population votes Republican, and its urban population votes Democrat. It is also the state this author calls home and was interested in studying.

⁵ Not to be confused with classical liberalism, which advocates for limited government and economic freedom

⁶ The reason these variables were picked was due to the difficulty of accessing confidential juvenile justice data for other variables (like nature of offense, race of juvenile etc.) in each state, since every state has different data collection and publication procedures and laws.

⁷ All data has been scored on a scale of 0-1 for purposes of standard analysis, with low/no values = 0, moderate values = 0.5, and high values = 1, except in cases of reverse scoring discussed separately.

⁸ Since states like Kansas have age of maturity listed as low as 10 years old, 16 is scored as a moderately liberal age of for criminal responsibility.

2. Minimum age for Juvenile Court Jurisdiction

Minimum age refers to the youngest child that can be brought into court to be charged with a delinquent act. By instituting a minimum age, states posit that any child that is younger than that age cannot be arrested, and that original jurisdiction belongs to their guardian.

California: 12 years (*high/liberal, score = 1*)

Virginia: No minimum age (*low/conservative, score = 0*)

Florida: 6 years (*low/conservative, score = 0*)

3. Age at which juvenile cases can be transferred to adult status

California: 16 years (*high/liberal, score = 1*)

Virginia: 14 years (*moderate, score = 0.5*)

Florida: 14 years (*moderate, score = 0.5*)

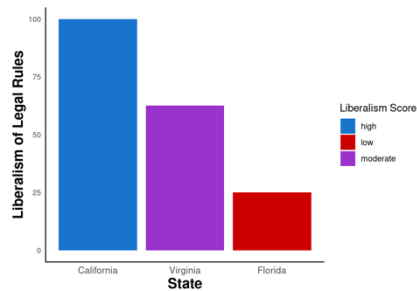


Figure 1: Political Liberalism of Legal Rules (aggregate percentage) by State

Legal Policies:

4. Pre-Judicial Discretion

Refers to the powers of law enforcement and juvenile intake officers to divert a child's case to non-judicial routes without needing approval from the court.

California: Law Enforcement has discretionary powers to either issue citation or file a complaint based on the issue at hand. Then, case is referred to a probation officer, who will decide to divert, release to parents, or petition the court – in certain extreme cases, may also detain the juvenile. If detained, the court must have a detention hearing within 48 hours, after which there will be an adjudication hearing (preponderance of evidence standard/accountability hearing - since cannot be judged as guilty) and then disposition (sentencing). The same process will be followed in case of petition without detention.ⁱⁱ

California's law enforcement discretion has been categorized as high/liberal (score = 1)

California's intake officer discretion has been categorized as high/liberal (score = 1)

Virginia: Almost identical process, except probation officers operate under a sub-division of the Commonwealth Attorney's office called "Court Services Unit", and the primary intake officer has discretionary diversion vs. petition powers, and their recommendations for disposition are taken into consideration.ⁱⁱⁱ

Virginia's law enforcement discretion has been categorized as high/liberal (score = 1)

Virginia's intake officer discretion has been categorized as high/liberal (score = 1)

Florida: Law enforcement has discretionary power to issue citation for a first time minor misdemeanor offense, in all other cases they are required to refer to the Juvenile Assessment Center, where a probation officer uses a "Detention Risk Assessment Instrument", which is a standardized criminality matrix used to decide the outcome of each complaint, considering

factors such as the age of youth, family support, seriousness of offense etc. in assigning “points” to determine whether youth meets criteria to be held in a secure, non-secure, or home detention setting while awaiting their next hearing. At the initial hearing, the judge can divert the youth or subject them to further hearings, allowing prosecutors to develop their case. In Florida, a youth may be held in detention care for up to 21 business days before an adjudicatory hearing for the case needs to have commenced.^{iv}

Florida’s law enforcement discretion has been categorized as high/liberal (score = 1)

Florida’s intake officer discretion has been categorized as low/conservative (score = 0)

5. Mandatory Sentencing Requirements (Statutory Exclusion)

Refers to the ability of circuit/adult criminal courts to claim original jurisdiction of a juvenile under certain exceptional statutes, requiring juvenile courts/prosecutors to mandatorily transfer them. Reverse scoring is used in this variable since greater mandatory sentencing requirements mean higher detention rates, and tough-on-crime policies are indicative of conservative political ideologies.

California: As a general matter in California, adult criminal court has no original jurisdiction over a case involving an individual under the age of 18, because transfer of a youth to adult criminal court may only occur after the approval of a judge in juvenile court.^v

California’s statutory exclusion has been categorized as low/liberal (reverse score = 1)

Virginia: VA eliminated automatic certification as adult requirements for youth aged 14 and 15, however, will certify children 16 and older, if charged with murder or aggravated malicious wounding.^{vi}

Additionally, 2020 House Bill 744 amending Va. Code 16.1-272 says:

- i. Circuit Court Judges must consider specific youth-related factors when sentencing a child.
- ii. Judges must consider adverse childhood experiences (ACEs), childhood trauma, and experience with any child welfare agency or other removal from the child’s home.
- iii. Judges must consider how children are developmentally different than adults and therefore less culpable for their actions.
- iv. Judges must craft proportional, age-appropriate sentences for children and not rely on mandatory minimum sentences. When creating or reviewing the sentence of a child adjudicated on a of a felony, the court may 1. depart from any mandatory minimum, or 2. suspend any applicable sentence.^{vii}

Virginia’s statutory exclusion has been categorized as low/liberal (reverse score = 1)

Florida: The State's Attorney must file charges directly in adult court against any child who meets certain offense/criminal history criteria such as third felony offense, second violent crime against a person, or any crime with involvement in a motor vehicle theft resulting in serious injury. Even if the State’s Attorney doesn’t use discretionary/direct file, these cases must be tried in adult court.^{viii}

Florida’s statutory exclusion has been categorized as high/conservative (reverse score = 0)

6. Prosecutorial Discretion

Reverse scoring is used in this variable since discretionary powers allowing prosecutors to transfer cases to adult status often deny juveniles right to appeal, and most states follow “once an adult, always an adult” laws, which mean that if a child is transferred under prosecutorial discretion on one case – regardless of the age of the child, nature of the crime or the verdict – they will forever lose the protections of juvenile court. This discretionary power, if given wide scope, will mean an increase in detention rates.

California: Proposition 57 limits prosecutorial discretion, and gives court judges sole discretion in transfer cases, taking away "direct file" authority from prosecutor. In 2014, before Proposition 57 was implemented, republican prosecutors direct filed 72% of eligible juvenile cases (violent felony arrests), while democratic prosecutors direct filed 24% of eligible juvenile cases.^{ix}

California's prosecutorial discretion was categorized as low/liberal (reverse score = 1)

Virginia: If a juvenile 14 years of age or older at the time of an alleged offense is charged with an offense which would be a felony if committed by an adult, the court shall, on motion of the attorney for the Commonwealth and prior to a hearing on the merits, hold a transfer hearing and may retain jurisdiction or transfer such juvenile for proper criminal proceedings to the appropriate circuit court having criminal jurisdiction of such offenses if committed by an adult - this hearing must consider a non-exhaustive list of factors including age, severity of the crime, rehabilitation potential, prior history and availability of services.

However, if a juvenile 16 or older is charged with a violent or significant felony, and after reviewing a report provided by the Court Service Unit, the Commonwealth's attorney provides notice of an intent to certify the juvenile for trial as an adult, the Juvenile court will only hold a probable cause hearing. If the Court finds probable cause, the case will be certified for trial as an adult in Circuit Court. That is, no transfer hearing considering the mitigating circumstances of the juvenile will be conducted. If probable cause is found (which is the lowest standard of evidence), then Commonwealth's Attorney can directly transfer child to circuit court.^x

Virginia's prosecutorial discretion was categorized as moderate (score = 0.5)

Florida: Prosecutors can directly file cases to the adult court for those listed under mandatory transfer, and also for cases involving firearms, and other felony charges for juveniles ages 14 and older. Cases transferred to adult court by prosecutorial direct file cannot be appealed.^{xi}

Florida's prosecutorial discretion was categorized as high/conservative (reverse score = 0)

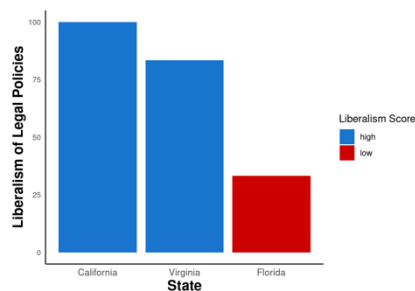


Figure 2: Liberalism of Legal Policies (aggregate percentage) by State

Legal Resources:

7. Average Public Defender Hourly Wage^{xii}

States with underfunded public defense offices effectively offer lower incentives to lawyers to pursue indigent defense, which has been shown to increase incarceration rates.^{xiii}

California: \$51.32 (high/liberal, score = 1)

Virginia: \$51.55 (high/liberal, score = 1)

Florida: \$38.86 (low/conservative, score = 1)

8. Number of Juvenile Detention Centers

Greater number of juvenile detention centers mean a reduced likelihood that States will be forced to – even temporarily – detain children in adult jails or prisons, which is a gross violation of their unique status as juveniles. Higher juvenile detention capacity, even at greater burden to taxpayers, is therefore aligned with the social justice priorities of political liberalism, and in conflict with economic liberty priorities of modern American conservative ideology.

California: Youths that are considered at risk are housed in "Secure Youth Treatment Facilities"... aimed at improving education access and behavioral supports, and taking away the punitive aspect of incarceration, focusing on rehabilitation. All 58 counties in the state now have such facilities.^{xiv}

California's number of juvenile placement centers has been categorized as high/liberal (score = 1)

Virginia: 24 juvenile detention centers, and one correctional center – Bon Air – that is under investigation.

Virginia's number of juvenile placement centers has been categorized as moderate (score = 0.5)

Florida: 21 state-operated juvenile detention centers^{xv}

Florida's number of juvenile placement centers has been categorized as low/conservative (score = 1)

9. Minimum Experience Required to become a juvenile court judge^{xvi}

Higher quantity of specialized experience (presumably) comes with a nuanced understanding of juvenile due process, and reduced likelihood of judicial malpractice.

California: 17 years, requiring law degree and practice of law as an attorney or judge in a court of record for at least 10 years.

California's experience required to become a juvenile court judge has been categorized as high/liberal (score = 1)

Virginia: 12 years, requiring law degree and membership of state bar for at least 5 years.

Virginia's experience required to become a juvenile court judge has been categorized as moderate (score = 0.5)

Florida: 12 years, requiring law degree and membership of state bar for at least 5 years.

Florida's experience required to become a juvenile court judge has been categorized as moderate (score = 0.5)

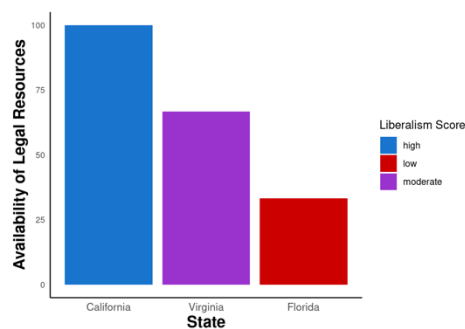


Figure 3: Liberalism of Legal Resources (aggregate percentage) by State

Evidence (Results)

Outcome 1: Rate of Juvenile Arrests/Intakes

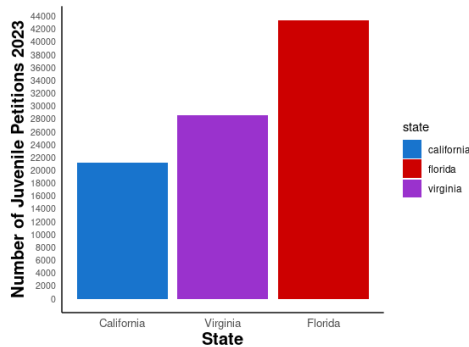


Figure 4: Number of Juvenile Justice Intakes/Arrests by state in 2023

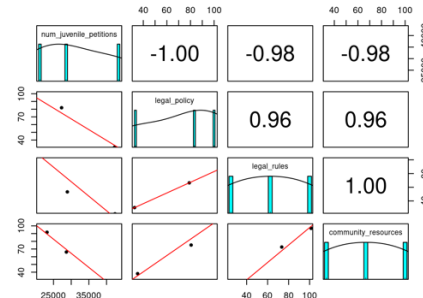


Figure 5: Correlation Coefficient Plot showing negative correlations between mean political liberalism scores for all three categories and number of juvenile justice intakes/arrests.

California: In 2023, as reported by law enforcement across the state, 32,047 juvenile arrests were made. 21,139 petitions were filed in juvenile court, of which 67.2% were new petitions, and 32.8% were subsequent petitions.

Virginia: In 2023, there were 28,586 juvenile intake cases. Petition was filed for 66.8% of these cases. Of these cases in which a petition was filed, 63.2% had diversion plans, 24.8% were resolved, and 5.2% were directly filed with the court.^{xvii}

Florida: In 2023, 43,394 intake arrests were recorded by the Florida Department of Juvenile Justice.^{xviii}

Outcome 2: Rate of Juvenile Transfers

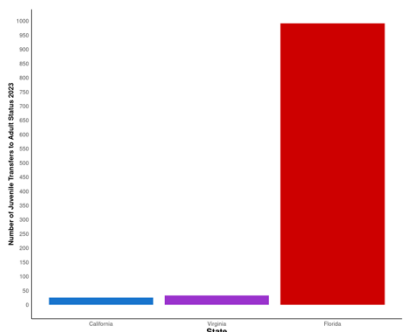


Figure 6: Number of Juvenile Justice Transfers to Adult Status by state in 2023

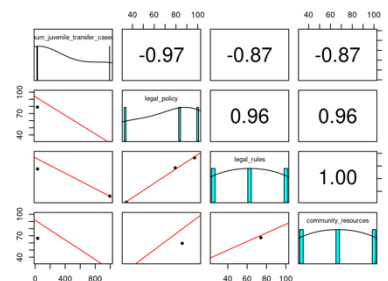


Figure 7: Correlation Coefficient Plot showing negative correlation between mean political liberalism scores for all three categories and number of juvenile justice transfers to adult status across all states.

California: 48 adult level court dispositions were filed in 2023, of which only 25 resulted in a conviction. The other 23 cases were dismissed and remanded to juvenile jurisdiction. Probation departments reported that 12 juveniles were transferred to the adult system.

Virginia: 33 juvenile cases were committed to determinate or blended sentences by a circuit court, that is, under adult status in 2023.

Florida: 991 juvenile cases were transferred to adult status in 2023.

Counter Arguments

While this paper finds a strong correlation between state political ideology and the rate of juvenile transfers to adult court, several alternative arguments and critiques merit consideration. First, the study is limited to a snapshot of data from the year 2023, for only three states. A longitudinal analysis across all fifty states might reveal fluctuations over time due to policy reforms, election cycles, or societal shifts such as the global pandemic, that a single-year analysis cannot capture. For example, as referenced in the evidence section, reforms in California following Proposition 57 were phased in over several years and could distort year-to-year comparisons. Similarly, Florida's Detention Risk Assessment Instrument was first implemented in 1996, and updated in 2019, and its updated impacts, although studied, were confounded by the pandemic.

Second, a major factor, recidivism rates were not considered, and petitions/arrests were not separated by first and subsequent intake. This would add a critical and informative layer to this analysis that is currently missing.

Third, while reverse scoring was used to standardize the political alignment of legal rules and policies, this method may oversimplify complex state-specific contexts. A policy labeled "liberal" in one state might have different implications in another due to why or how it's enforced or resourced. Furthermore, reducing complex legal rules and policies to a 0–1 scale risks flattening important differences in implementation, nuance, and local variation. For instance, two states that both scored "1" on average public defender compensation, might vary widely in daily caseloads, which might affect defendant outcomes more than attorney wages.

Fourth, despite attempts to select similarly populated states, demographic differences across the three states could influence the absolute number of juvenile arrests and transfers. Florida's larger youth population, for instance, might naturally result in higher absolute juvenile intake numbers, regardless of policy. Moreover, statewide differences in criminal activity were not considered, such as prevalence of gang activity or undocumented immigration in border states, which might greatly impact arrest rates independent of political ideology. Lastly, state-by-state differences in funding allotted to juvenile justice would also influence availability of resources and alternative programs, especially in states like Wyoming or Nebraska, which do not receive any federal funding for their juvenile justice system.

Political Implications

The findings of this study, despite potential oversimplifications, identify vital concerns about the politicization of juvenile justice and its consequences for youth across the United States. If validated by further research, the strong correlation between conservative legal frameworks and higher rates of juvenile transfers to adult court suggests that political ideology has a significant impact on the life trajectories of young offenders. This would challenge the assumption that juvenile justice is wholly rehabilitative and administered equitably based primarily on individual behavior. Instead, it would reveal a system in which a child's fate can vary dramatically depending on the state in which they reside, regardless of the circumstances of their offense. This comparison provides a strong foundation to advocate for federal protections and minimum standards in juvenile justice — such as setting a national minimum age for adult transfer,

limiting prosecutorial discretion, or mandating trauma-informed assessments before transfer decisions are made. Without such interventions, youth in conservative states may continue to face disproportionately harsh outcomes under superficially neutral laws. Moreover, these disparities have broader democratic implications. If the administration of justice is at all influenced by ideology, then the legitimacy of the legal system — especially its claim to fairness and impartiality — is undermined. This study therefore calls attention to the need for both state-level reforms and national dialogue around the goals of juvenile justice. It also raises a normative question: Should rehabilitation be a partisan issue? If the criminal legal system is to serve the best interests of society, then protecting the rights and developmental potential of juveniles should transcend political lines. The politicization of transfer laws may also exacerbate existing racial and class disparities, given that children of color and children from low-income communities are more likely to be caught in punitive systems, and less likely to benefit from well-resourced legal defense or community support structures. As such, the findings are not just a reflection of ideological preferences, but also a symptom of structural inequality within American legal federalism.

Future Research

One of the most immediate areas for expansion is a longitudinal study of transfer rates over time. Examining data across multiple years would allow scholars to track how changes in leadership, or legislation affect transfer outcomes, providing a stronger basis for causal claims. Additionally, incorporating more states into the analysis — including those with mixed or shifting political identities — would increase the generalizability of the findings and allow for more nuanced comparisons between local and statewide trends. Future research should also move beyond policy texts and quantitative rates to include qualitative analysis, such as interviews with public defenders, prosecutors, judges, and affected youth. Such ethnographic or interview-based work would illuminate how discretion is exercised on the ground, and whether formal policy aligns with actual practice. Another promising direction is to study the intersectionality of race, gender, and socioeconomic status in transfer decisions, particularly given the disproportionate impact of harsh transfer laws on Black and Brown youth. In addition, future work could investigate the downstream effects of juvenile transfers — including recidivism rates, educational attainment, employment, and mental health outcomes — to assess the long-term consequences of trying youth as adults. Finally, it would be valuable to explore public opinion and media representation of youth crime in each state, as these cultural factors may influence both political agendas and prosecutorial behavior. Altogether, expanding this line of inquiry could contribute to more evidence-based, equitable, and humane approaches to juvenile justice nationwide.

Conclusion

This paper reveals a sobering truth: the fate of a child in the justice system may hinge less on their conduct or age and more on their zip code. While juvenile courts were designed to rehabilitate, not punish, this study shows that politically conservative states like Florida leave the fate of each child to the discretion of the courtroom, while liberal states like California offer more protective frameworks. When prosecutorial discretion, limited legal alternatives, and punitive ideologies converge, they create a pipeline that fast-tracks vulnerable youth into adult courtrooms and prisons. This is not just a policy issue; it's a moral one. If justice is truly blind, then we must confront the ways in which ideology tips the scales. Until then, the promise of juvenile justice will remain just that: a promise, unevenly kept.

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